

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index #
Date of filing:

-----X
AISHA K. BECKETT,

Plaintiff,

-against-

Plaintiff designates New York
County as the place of trial

Basis of the venue is the Locus
of Occurrence

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER JOHNNY
MITCHELL and JOHN DOES-Police Officers as yet
unidentified,

Defendants.

SUMMONS

Plaintiff resides at
441 Highland Avenue
Mount Vernon, New York 10553

County of Westchester

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant's address:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

THE NEW YORK CITY POLICE
DEPARTMENT
100 Church Street
New York, New York 10007

POLICE OFFICER JOHNNY MITCHELL
c/o New York City Police Department- 33rd
Precinct
2207 Amsterdam Avenue
New York, New York 10032

Dated: Brooklyn, New York
June 18, 2015

Plaintiff's attorneys:

RUBENSTEIN & RYNECKI, ESQS.
16 Court Street, Suite 1717
Brooklyn, New York 11241
(718)522-1020

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
AISHA K. BECKETT,

Index No.:

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER JOHNNY
MITCHELL and JOHN DOES-Police Officers as yet
unidentified,

Defendants.

-----X

Plaintiff, by her attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the
defendants herein, upon information and belief, respectfully shows to this Court, and alleges as
follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR
NEGLIGENCE ON BEHALF OF AISHA K. BECKETT**

1. That at all times hereinafter mentioned, plaintiff was and still is a resident of the
County of Westchester, State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK,
was and still is a municipal corporation, duly organized and existing pursuant to the laws of the
State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known
as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on January 26, 2015, and within the time prescribed by law, a
sworn Notice of Claim stating, among other things, the time when and place where the injuries
and damages were sustained, together with plaintiff's demands for adjustment or payment thereof,
and that thereafter the CITY OF NEW YORK refused or neglected for more than (30) days and
up to the commencement of this action to make any adjustment or payment thereof, and that
thereafter, and within the time provided by law, this action was commenced.

5. That on May 26, 2015, pursuant to the General Municipal Law, a Statutory 50-H hearing of plaintiff was held.

6. That on November 20, 2014, and at all times hereinafter mentioned and upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, employed POLICE OFFICER JOHNNY MITCHELL and JOHN DOES-Police Officers as yet unidentified, as agents, servants and/or employees.

7. That on November 20, 2014, and at all times hereinafter mentioned, and upon information and belief, the defendant, THE CITY OF NEW YORK, owned the motor vehicle used as a New York City Police Department motor vehicle.

8. That on November 20, 2014, and at all times hereinafter mentioned, and upon information and belief, the defendant, THE NEW YORK CITY POLICE DEPARTMENT, owned the motor vehicle used as a New York City Police Department motor vehicle.

9. That on November 20, 2014, and at all times hereinafter mentioned, and upon information and belief, the defendant, POLICE OFFICER JOHNNY MITCHELL, operated the motor vehicle used as a New York City Police Department motor vehicle.

10. That on November 20, 2014, and at all times hereinafter mentioned, and upon information and belief, the defendant, POLICE OFFICER JOHNNY MITCHELL, controlled the motor vehicle used as a New York City Police Department motor vehicle.

11. That on November 20, 2014, and at all times hereinafter mentioned, and upon information and belief, the defendant, POLICE OFFICER JOHNNY MITCHELL, operated and controlled the motor vehicle used as a New York City Police Department motor vehicle.

12. That on November 20, 2014, and at all times hereinafter mentioned, and upon information and belief, the defendant, POLICE OFFICER JOHNNY MITCHELL, operated and controlled the motor vehicle used as a New York City Police Department motor vehicle, with the knowledge, permission and consent of defendant owner, CITY OF NEW YORK.

13. That on November 20, 2014, and at all times hereinafter mentioned, and upon information and belief, the defendant, POLICE OFFICER JOHNNY MITCHELL, operated and

controlled the motor vehicle used as a New York City Police Department motor vehicle, with the knowledge, permission and consent of defendant owner, THE NEW YORK CITY POLICE DEPARTMENT.

14. That on November 20, 2014, and at all times hereinafter mentioned, and upon information and belief, the defendant, POLICE OFFICER JOHNNY MITCHELL, was an employee of the defendant, THE CITY OF NEW YORK.

15. That on November 20, 2014, and at all times hereinafter mentioned, and upon information and belief, the defendant, POLICE OFFICER JOHNNY MITCHELL, was an employee of the defendant, THE NEW YORK CITY POLICE DEPARTMENT.

16. That on November 20, 2014, and at all times hereinafter mentioned, and upon information and belief, the defendant, POLICE OFFICER JOHNNY MITCHELL, operated and controlled the aforesaid motor vehicle, within the scope of his employment.

17. That at all times hereinafter mentioned, at or near the intersection of Riverside Drive and 165th Street, County, City and State of New York, was and still is a public highway used extensively by the public in general.

18. That on November 20, 2014, and at all times hereinafter mentioned and upon information and belief, the plaintiff, AISHA K. BECKETT, was operating her motor vehicle in the roadway at or about the intersection of Riverside Drive and 165th Street, County, City and State of New York.

19. That on November 20, 2014, the defendants performed a motor vehicle stop on the plaintiff, AISHA K. BECKETT, while operating her motor vehicle at the aforesaid location.

20. After the plaintiff, AISHA K. BECKETT, was pulled over the plaintiff who was standing in the roadway at the aforesaid location, next to the defendants' motor vehicle and engaged in conversation with defendant, POLICE OFFICER JOHNNY MITCHELL, the plaintiff was negligently struck by the vehicle used as a New York City Police Department motor vehicle operated by the defendant, POLICE OFFICER JOHNNY MITCHELL, and jointly owned by defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE

DEPARTMENT.

21. That after being struck, plaintiff, AISHA K. BECKETT, was falsely and improperly imprisoned and detained against her will.

22. That the above stated occurrence and the results thereof were in no way due to any negligence on the part of the plaintiff contributing thereto, but was caused by the negligence of the defendants, in the ownership, operation, management, maintenance and control of their motor vehicle; in operating same without due regard to the rights and safety of the plaintiff; in operating their motor vehicle in a manner which unreasonably endangered the plaintiff; in failing to properly steer, guide, manage and control their vehicle; in operating same at a rate of speed greater than was reasonable and proper at the time and place of the occurrence; in failing to apply the brakes or slow down or stop in such a manner as would have prevented the occurrence; in failing to have made adequate and timely observation of and response to conditions; in failing to observe signs and signals prevailing at the time and place of the occurrence; in failing to keep a proper look-out when controlling their vehicle; in failing to properly maintain their vehicle according to law; in failing to give adequate and timely signal, notice or warning; in operating their motor vehicle in violation of the traffic rules, regulations, statutes and ordinances in such cases made and provided; and in being otherwise careless, reckless and negligent in the ownership, maintenance, operation and control of their motor vehicle.

23. That by reason of the foregoing and the negligence of the said defendants, this plaintiff sustained serious, severe, and permanent injuries to her limbs and body, still suffers and will continue to suffer for some time, great physical and mental pain and serious bodily injury; became sick, sore, lame and disabled and so remained for a considerable length of time.

24. That by reason of the wrongful, negligent and unlawful actions of the defendants, as aforesaid, the plaintiff sustained serious injuries as defined in the Insurance Law of the State of New York, and has sustained economic loss greater than basic economic loss as defined in said Insurance Law.

25. That by reason of the foregoing and the negligence of the said defendants, this plaintiff is informed and verily believes her aforesaid injuries are permanent and that she will permanently suffer from the effects of her aforesaid injuries and she will be caused to suffer permanent embarrassment and continuous pain and inconvenience.

26. That by reason of the foregoing, this plaintiff was compelled and did necessarily require medical aid and attention and did necessarily pay and become liable therefore, for medicines and upon information and belief, the plaintiff will necessarily incur similar expenses.

27. That by reason of the foregoing, the plaintiff has been unable to attend her usual occupation, avocation and/or activity in the manner required.

28. That by reason of the wrongful, negligent and unlawful actions of the defendants, as aforesaid, the plaintiff was severely injured, bruised and wounded, suffered, still suffers, and will continue to suffer for some time great physical pain and great bodily injuries and became sick, sore, lame and disabled and so remained for a considerable length of time.

29. This action falls within one or more of the exceptions set forth in CPLR §1602.

30. That as a result of the defendants' negligence as aforesaid, this plaintiff, AISHA K. BECKETT, has sustained damages both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR
FALSE ARREST ON BEHALF OF AISHA K. BECKETT**

31. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "30" inclusive with the same force and effect as if more fully set forth at length herein.

32. That on November 20, 2014, and at all times hereinafter mentioned and upon information and belief, the plaintiff, AISHA K. BECKETT, was operating her motor vehicle in the roadway at or about the intersection of Riverside Drive and 165th Street, County, City and State of New York.

33. That on November 20, 2014, and at all times hereinafter mentioned and upon information and belief, while the plaintiff, AISHA K. BECKETT, was operating her motor vehicle, and was pulled over by defendant, POLICE OFFICER JOHNNY MITCHELL, at the aforesaid location.

34. That on November 20, 2014, and at all times hereinafter mentioned and upon information and belief, while standing in the roadway at the aforesaid location after being pulled over, plaintiff, AISHA K. BECKETT, was struck by the motor vehicle operated by defendant, POLICE OFFICER JOHNNY MITCHELL, who was acting within the scope of his employment with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

35. That on November 20, 2014, and at all times hereinafter mentioned and upon information and belief, the plaintiff, AISHA K. BECKETT, was falsely arrested by defendants, POLICE OFFICER JOHNNY MITCHELL and JOHN DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, at the aforesaid premises.

36. That on November 20, 2014, and at all times hereinafter mentioned and upon information and belief, the aforementioned false arrest was performed knowingly, intentionally and willfully.

37. That on November 20, 2014, and at all times hereinafter mentioned and upon information and belief the defendants, POLICE OFFICER JOHNNY MITCHELL and JOHN DOES-Police Officers as yet unidentified, who falsely arrested the plaintiff, AISHA K. BECKETT, were acting within the scope of their employment with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

38. That on November 20, 2014, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

39. That as a result of the aforesaid false arrest and confinement, plaintiff, AISHA K. BECKETT, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and injuries.

40. By the reason of the foregoing, the plaintiff, AISHA K. BECKETT, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF AISHA K. BECKETT**

41. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "40" inclusive with the same force and effect as if more fully set forth at length herein.

42. That defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER JOHNNY MITCHELL and JOHN DOES-Police Officers as yet unidentified, who falsely arrested and violated the civil rights of the plaintiff, AISHA K. BECKETT.

43. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER JOHNNY MITCHELL and JOHN DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

44. By the reason of the foregoing, the plaintiff, AISHA K. BECKETT, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF AISHA K. BECKETT**

45. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "44" inclusive with the same force and effect as if more fully set forth at length herein.

46. That on November 20, 2014, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JOHNNY MITCHELL and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

47. That defendants POLICE OFFICER JOHNNY MITCHELL and JOHN DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against her will and said confinement was not privileged.

48. By the reason of the foregoing, the plaintiff, AISHA K. BECKETT, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR
INTENTIONAL AND NEGLIGENT INFLECTION OF EMOTIONAL
DISTRESS ON BEHALF OF AISHA K. BECKETT**

49. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "48" inclusive with the same force and effect as if more fully set forth at length herein.

50. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER JOHNNY MITCHELL and JOHN DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

51. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, AISHA K. BECKETT.

52. That as a result of said intentional and negligent acts, the plaintiff, AISHA K. BECKETT, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of her person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

53. By reason of the foregoing, the plaintiff, AISHA K. BECKETT, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR MALICIOUS
PROSECUTION ON BEHALF OF AISHA K. BECKETT**

54. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "53" inclusive with the same force and effect as if more fully set forth at length herein.

55. That on November 20, 2014, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JOHNNY MITCHELL and JOHN DOES- Police Officers as yet unidentified, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

56. That on November 20, 2014, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JOHNNY MITCHELL and JOHN DOES- Police Officers as yet unidentified, were acting within the scope of their employment, maliciously prosecuted the plaintiff.

57. That on November 20, 2014, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities, loss of earnings and suffered emotional and physical distress and injury.

58. By reason of the foregoing, plaintiff, AISHA K. BECKETT, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF AISHA K. BECKETT**

59. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "58" inclusive with the same force and effect as if more fully set forth at length herein.

60. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER JOHNNY MITCHELL and JOHN DOES-Police Officers as yet unidentified, were acting under the color of law and within the scope of their authority, falsely arrested and falsely imprisoned the plaintiff, AISHA K. BECKETT, in violation of 42 U.S.C.A. section 1983 as well as other applicable state and federal laws.

61. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER JOHNNY MITCHELL and JOHN DOES-Police Officers as yet unidentified, acting under color of law and within the scope of their authority, deprived the plaintiff, AISHA K. BECKETT, of liberty without due process and without reasonable cause in violation of 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

62. The defendants had deprived the plaintiff by their actions of her civil rights as guaranteed by statute.

63. That the false arrest and false imprisonment was in violation of the civil rights of the plaintiff, more particularly, 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

64. That the deprivation by the defendants of plaintiff's civil rights was a result of said defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE

DEPARTMENT, including but not limited to POLICE OFFICER JOHNNY MITCHELL and JOHN DOES-Police Officers as yet unidentified, acting under color of law and within their authority as law enforcement officers within the employ of defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

65. That the defendants' actions were not privileged or immune.

66. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER JOHNNY MITCHELL and JOHN DOES-Police Officers as yet unidentified, were not acting with immunity when they deprived plaintiff of her civil rights.

67. By the reason of the foregoing, the plaintiff, AISHA K. BECKETT, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF AISHA K. BECKETT**

68. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "67" inclusive with the same force and effect as if more fully set forth at length herein.

69. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

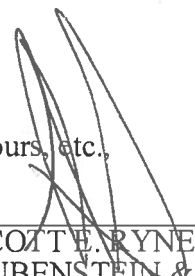
70. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER JOHNNY MITCHELL and JOHN DOES-Police Officers as yet unidentified, herein-above alleged.

71. By the reason of the foregoing, the plaintiff, AISHA K. BECKETT, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiff, AISHA K. BECKETT, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, AISHA K. BECKETT, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, AISHA K. BECKETT, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, AISHA K. BECKETT, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, AISHA K. BECKETT, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, AISHA K. BECKETT, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; plaintiff, AISHA K. BECKETT, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventh** Cause of Action; plaintiff, AISHA K. BECKETT, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eighth** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
June 18, 2015

Yours, etc.,



SCOTT E. RYNECKI, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiff
AISHA K. BECKETT
16 Court Street Suite 1717
Brooklyn, New York 11241
(718) 522-1020
File No.: 14AB11-20

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)

) SS:

COUNTY OF KINGS)

AISHA K. BECKETT, being duly sworn, deposes and says, that deponent is the plaintiff in the within action; that deponent has read the foregoing **COMPLAINT** and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.


AISHA K. BECKETT

Sworn to before me this 29
day of June, 2015



NOTARY PUBLIC

SCOTT RYNECKI
Notary Public, State of New York
No. 02RY4965640
Qualified in Kings County
Commission Expires 8/26/2018

PLEASE take notice that the within is a (*certified*) true copy of a duly entered in the office of the clerk of the within named court on

Dated,

Yours, etc.

RUBENSTEIN & RYNECKI ESQS.

Attorneys for

Office and Post Office Address
16 COURT ST.
BROOKLYN, N.Y. 11241

To

Attorney(s) for

NOTICE OF SETTLEMENT

PLEASE take notice that an order

of which the within is a true copy will be presented for settlement to the Hon.

one of the judges of the within named Court, at

on

at

M.

Dated,

Yours, etc.

RUBENSTEIN & RYNECKI ESQS.

Attorneys for

Office and Post Office Address
16 COURT ST.
BROOKLYN, N.Y. 11241

To

Attorney(s) for

Index No.

Year

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

AISHA K. BECKETT,

Plaintiff,

-against-

**THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT,
POLICE OFFICER JOHNNY MITCHELL and JOHN DOES-Police Officers a
unidentified,**

Defendants.

SUMMONS AND COMPLAINT

Signature (Rule 130-1.1-a)

Print name beneath

RUBENSTEIN & RYNECKI ESQS.

Attorneys for

Plaintiff

Office and Post Office Address, Telephone
16 COURT ST.
BROOKLYN, N.Y. 11241
(718) 522-1020

To

Attorney(s) for

Service of a copy of the within is hereby admitted.
Dated

.....

Attorney(s) for